

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 23, 2026 TIME: 8:30 A.M.

The Court agrees that plaintiff's first amended complaint is fatally uncertain. First, it is not clear which defendants are named for which of the two causes of action. Second, the allegations as a whole are set out in a rambling, incoherent manner; should plaintiff amend he must state his contentions in ordinary and concise language. A complaint must, among other things, contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a).) For example, plaintiff lists in exhaustive detail what appears to be snippets from his own medical records and indecipherable medical jargon – such detail confuses the issue of what procedure and what medical practitioner is allegedly responsible for plaintiff's harm. It is not even clear when the medical treatment was provided.

Plaintiff is cautioned that any amendment must be concise and clearly describe the treatment at issue, who provided that treatment, and when. Plaintiff is also reminded that responsive papers must be filed within the deadlines prescribed by the Rules of Court and served on all parties to the action (his oppositions to the motion were filed one court day late and he failed to serve them).

No. 23CV01548

CHEPOURKOVA v. CHEPOURKOVA

**MOTION FOR INTERLOCUTORY JUDGMENT OF PARTITION AND
APPOINTMENT OF REFEREE**

The parties shall appear to determine if they can reach an agreement/stipulation to proceed with an interlocutory judgment on the papers presented, or agree to a sale price for Anna's purchase. Since the statutory scheme allowing interlocutory judgments requires either a trial or dispositive motion, and none has yet occurred here, the current motion does not support the granting of an interlocutory judgment.

I. INTRODUCTION/BACKGROUND

The parties' declarations provide the following facts:

Plaintiff Tatiana Chepourkova ("Tatiana") and defendant Anna Chepourkova ("Anna") are sisters and each own an undivided 50% interest as tenants in common in an undeveloped, unoccupied parcel in Santa Cruz County (APN 097-111-08). Both parties are self-represented. Tatiana anticipates that Anna will make claims for reimbursement and/or contribution, which Tatiana will dispute. Tatiana seeks the appointment of a referee and sale of the property.

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Anna opposes the motion and declares that following mediation with Judge Schmal, she and Tatiana both hired appraisers. Anna's valuation was \$145,000.00 (James Brumfield, appraiser) and Tatiana's was \$360,000.00 (Brian Nicholson, appraiser). When this action was filed in 2023, both sisters had counsel and their negotiations for Anna to purchase Tatiana's interest fell through. They listed the property for sale in 2024 for \$350,000.00 pursuant to their Settlement Agreement. (Anna Declaration, Exhibit A.) When the property received no offers and did not sell in nine months, despite price reductions delineated in the Agreement, the agents canceled the listing agreement. The sisters discussed listing the property for \$299,000.00 but Tatiana would not agree and instead asked Anna to make her an offer that she would accept or she would proceed with a partition action.

Anna acknowledges she has paid to remove diseased trees and contributed to the cost of the shared private road, but she will not seek reimbursement. Anna does not address whether she agrees that a referee be appointed to sell the parcel and split the proceeds, but she has sought to purchase her sister's portion for years.

II. LEGAL STANDARDS

Partition is an equitable action that is governed by statute. (CCP § 872.010 et seq.)² Property may be partitioned by physical division, sale of the property and division of the proceeds, or court approved and supervised partition by appraisal. (§§ 873.210-290, 873.510-850, 873.910-980.) "The interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action." (§ 872.610.) "Court determination of right to partition. *At the trial*, the court shall determine whether the plaintiff has the right to partition." (§ 872.710(a) (emphasis added).) If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property. (§ 872.720(a).) Thereafter, the court shall order that the property be divided in accordance with the parties' interests as determined in the interlocutory judgment. (§ 872.810.) If the court orders sale, the court shall appoint a referee to divide and sell the property. (§§ 872.010, 873.020.) The statutory scheme envisions an interlocutory judgment of partition must come as the result of a trial -- or summary judgment under § 437c. (*See LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484 [reversing denial of, and ordering trial court to grant, plaintiff's motion for summary adjudication on partition cause of action].)

² All future statutory references are to the Code of Civil Procedure, unless otherwise noted.

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III. DISCUSSION

Tatiana seeks partition of the property by appointment of a referee and sale. Neither party addresses the requirement of a trial or dispositive motion prior to interlocutory judgment. While plaintiff has consented to an interlocutory judgment, defendant has not.

Based on the status of the case, an interlocutory judgment for partition is premature. An order for sale upon partition may only be made after a trial or dispositive motion determining the parties' interests and rights, or presumably by stipulation. Plaintiff does not provide any legal authority that the interlocutory judgment can result from the type of motion filed.